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Case Name: *Gonzalez et al. v. Super Micro Computer, Inc.*
Case No.: 25CV476626

This is a representative action under the Private Attorneys General Act (“PAGA”), brought by plaintiffs Eric Gonzalez and Rick Downey (collectively, “Plaintiffs”) against Defendant Super Micro Computer, Inc. (“Defendant”). Before the Court is Defendant’s motion to compel arbitration and stay civil court proceedings. Plaintiffs oppose the motion. As discussed below, the Court GRANTS IN PART and DENIES IN PART the motion. The Court compels each Plaintiff’s individual claims to arbitration. The Court STAYS the non-individual, representative claims pending the completion of the arbitrations.

I. Background

Plaintiffs Gonzalez and Downey are former employees of Defendant Super Micro Computer, Inc. (“Super Micro” or “Defendant”). Gonzalez worked as a sales support specialist from February 2023 to May 2024. Downey worked as a senior sales manager, most recently from January 2023 to October 2024. Plaintiffs allege that Super Micro misclassified them and other salaried sales employees as exempt from California’s wage-and-hour laws. They seek PAGA penalties for unpaid overtime, non-compliant meal and rest periods, inaccurate wage statements, and the untimely payment of wages. They bring these claims on behalf of the State, other aggrieved employees, and themselves. (First Amended Complaint, ¶¶ 1–5, 22–23.)

Super Micro moves to compel arbitration of the individual component of Plaintiffs’ PAGA claims and to stay the representative component. (Memorandum, pp. 1–2.) The motion rests on a written arbitration agreement that each Plaintiff signed by DocuSign on March 14, 2023. (*Id.* at pp. 2–3.) Plaintiffs oppose, contending that the agreement is an unlawful wholesale PAGA waiver, that it is unconscionable, and that the representative claims should not be stayed. (Opposition, pp. 2–12.)

II. Legal Standard

In determining the threshold question of whether an arbitration agreement exists between the parties, a court employs a three-step burden-shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060; see also *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

III. Existence of Agreement to Arbitrate

Defendant bears the initial burden of showing an agreement to arbitrate, and it meets that burden. Defendant submits each Plaintiff’s signed Arbitration of Disputes Program and Agreement (the “Agreement”). It authenticates the electronic signatures through DocuSign Certificates of Completion, each Plaintiff’s unique company email address, and distinct IP addresses. (Memorandum, pp. 2–3; Chan-Zien Decl., ¶¶ 7-19, Ex. A–B.)

The burden does not shift back to Defendant. Neither Plaintiff denies signing the Agreement. (Gonzalez Decl., ¶ 7; Downey Decl., ¶ 5.) They dispute the circumstances of signing, but not the fact of execution. (Opposition, pp. 1–2.) The Court finds that a valid agreement to arbitrate exists. Each Plaintiff assented by electronic signature and by continuing employment for 30 days after receipt. The Agreement is governed by the Federal Arbitration Act, both by its express terms and because Super Micro’s operations involve interstate commerce. (Memorandum, pp. 6–8.)

V. Class and Representative Action Waiver

The Agreement requires arbitration of covered disputes on an individual basis. It waives the right to bring group, class, or collective actions. (Memorandum, pp. 4–5.) It further provides that any group, class, or collective claim that cannot lawfully be waived must be

litigated in a court of competent jurisdiction, and that no such claim proceeds in arbitration unless all parties agree. (Chan-Zien Decl., ¶ 22.) The Agreement does not mention PAGA.

It is well-settled that the Federal Arbitration Act permits a court to compel arbitration of a plaintiff's individual PAGA claim. (*Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662.) A pre-dispute agreement to waive representative PAGA claims remains unenforceable as against public policy. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1117.) A PAGA action has two components: (1) the individual component that seeks penalties for Labor Code violations the plaintiff personally suffered; and (2) the non-individual component that seeks penalties for violations suffered by other employees. (*Id.* at pp. 1113–1114.) Where the agreement so provides, the individual component may be compelled to arbitration while the non-individual component remains in court. (*Ibid.*)

Plaintiffs argue that the Agreement is a wholesale PAGA waiver with no mechanism to sever the individual component. (Opposition, pp. 2–6.) The Court is not persuaded. The Agreement does not force representative PAGA claims into arbitration, but instead preserves them for court. (Chan-Zien Decl., ¶ 22.) It separately requires arbitration of covered disputes relating to compensation on an individual basis. The individual component of Plaintiffs' PAGA claims is such a dispute. This is the structure that *Viking River* endorsed.

This case is unlike those in which the agreement excluded PAGA claims altogether or supplied no route to arbitrate the individual component. (See *Ford v. The Silver F, Inc.* (2025) 110 Cal.App.5th 553, 564; *DeMarinis v. Heritage Bank of Commerce* (2023) 98 Cal.App.5th 776, 787.) The Agreement here affirmatively commands individual arbitration and does not exclude PAGA. To the extent the Agreement is ambiguous as applied to a PAGA-only action, the presumption in favor of arbitration resolves the doubt. (Reply, pp. 2-3.) The Court finds the individual component of Plaintiffs' PAGA claims arbitrable.

V. Unconscionability

Plaintiffs argue the Agreement is unenforceable on unconscionability grounds. (Opposition, pp. 6–10.) Defendant argues that Plaintiffs failed to establish either procedural or substantive unconscionability. (Reply, pp. 3–9.)

A showing that an arbitration agreement is unconscionable can bar its enforcement. (*Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 132 (*Diaz*)). “The doctrine has both a procedural and substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. Both elements must be present for a court to refuse enforcement.” (*Ibid.*, internal quotation marks and citations omitted.)

The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. [Citations.] Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.

(*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*OTO*), internal citation omitted.)

A. Procedural Unconscionability

The issue of procedural unconscionability concerns the making of the agreement and any “oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 795.) Courts have considered employment contracts provided on a “take-it-or-leave-it” basis to be procedurally unconscionable to some extent. (See *Farrar v. Direct Commerce, Inc.* (2017) 9 Cal.App.5th 1257, 1266.)

Plaintiffs argue there is procedural unconscionability because the Agreement was presented as a condition of employment, on a take-it-or-leave-it basis, weeks or months after they began work, with no opportunity to negotiate, to take the document home, or to ask questions. (Opposition, p. 7; Gonzalez Decl., ¶¶ 7–9; Downey Decl., ¶¶ 5–7.)

The Court finds a low degree of procedural unconscionability. The Agreement is a contract of adhesion imposed as a condition of employment, and it is therefore procedurally unconscionable to some extent. (*Farrar, supra*, 9 Cal.App.5th at p. 1266.) Adhesion alone, however, does not render an agreement unenforceable. (Reply, pp. 3–4; *Lane v. Francis Capital Mgmt., LLC* (2014) 224 Cal.App.4th 676, 689 [“assuming the agreement was one of adhesion, courts have consistently held that that fact alone is insufficient to invalidate an arbitration agreement”].) The element of surprise is weak. The Agreement is a stand-alone,

seven-page document with a clear heading and a bold, enlarged disclosure of the arbitration commitment. Each Plaintiff acknowledged the opportunity to read the Agreement and to ask questions of Human Resources. (Chan-Zien Decl., ¶¶ 8, 21.) The degree of procedural unconscionability is low.

B. Substantive Unconscionability

“Substantive unconscionability looks beyond the circumstances of contract formation and considers the fairness of an agreement’s actual terms focusing on whether the contract will create unfair or one-sided results. Substantively unconscionable contractual clauses reallocate risks in an objectively unreasonable or unexpected manner.” (*Ramirez, supra*, 16 Cal.5th at p. 493, internal punctuation and citations omitted; see also *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632, 641.) The test is whether the terms impair the integrity of the bargaining process or otherwise contravene public policy, or the terms “attempt to alter in an impermissible manner fundamental duties otherwise imposed by the law” or “negate the reasonable expectations of the nondrafting party.” (*Sonic-Calabasas A., Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1145.)

Plaintiffs contend the Agreement is substantively unconscionable because it waives non-waivable PAGA claims, because its definition of covered disputes is overbroad and non-mutual, and because its “Excluded Claims” provision bars any monetary recovery through administrative proceedings. (Opposition, pp. 7–10.)

Here, because the procedural showing is low, Plaintiffs must make a strong showing of substantive unconscionability. (*OTO, supra*, 8 Cal.5th at p. 126.) They do not.

The waiver is not one-sided. As explained above, the Agreement preserves representative PAGA claims for court and does not waive PAGA penalties. (Reply, pp. 2–3.) The definition of covered disputes is not unlawfully overbroad. It reaches only disputes arising out of employment. It does not bind Plaintiffs for life and does not cover non-employment claims. It is therefore distinguishable from *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. (Reply, pp. 5–6.) In addition, the obligation to arbitrate is mutual.

Plaintiffs raise legitimate concerns regarding the “Excluded Claims” provision. That provision preserves access to administrative agencies but states that an employee may not seek or receive monetary compensation from such proceedings. (Opposition, pp. 8–9.) Even assuming this provision is substantively unconscionable, it does not defeat the motion, because it is severable. California law strongly prefers severing a single offending term and enforcing the balance of the agreement. (*Ramirez, supra*, 16 Cal.5th at p. 513.) The central purpose of the Agreement is to arbitrate employment disputes on an individual basis, and that purpose is not tainted by the “Excluded Claims” provision, which is collateral and may be excised without reformation. (*Id.* at pp. 515–516.) The Agreement contains a severability clause, and the interests of justice favor severance. (Reply, pp. 9–10.) The Court severs the “Excluded Claims” provision to the extent it limits any statutory monetary remedy and enforces the balance of the Agreement.

The Court finds that the Agreement, as enforced, is not unconscionable.

VI. Conclusion

For the reasons stated, the Court GRANTS IN PART and DENIES IN PART the motion to compel arbitration. The Court compels each Plaintiff’s individual claims to arbitration. The Court STAYS the non-individual, representative claims pending the completion of the arbitrations.

Case Management Conference July 15, 2026 at 2:30 p.m. is VACATED.

Further Case Management Conference for review pending arbitration is set on February 24, 2027 at 2:30 p.m.

Defendant shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Case Name: *Steinbeck Vineyards #1, LLC v. County of San Luis Obispo et al.*

Case No.: 2014-1-CV-265039

(Consolidated with Case No. 1-14-CV-269212)

I. Introduction

Before the Court is Plaintiffs' motion for summary judgment, or in the alternative, summary adjudication against Defendant San Miguel Community Services District (the "District") on the District's Nineteenth (Pueblo Water Right) and Twentieth (Treaty Water Right) affirmative defenses. Those two defenses are the subject of the Phase 6 trial set for August 17, 2026. The motion presents two central issues: (1) whether the District is judicially estopped from asserting pueblo and/or treaty rights after prevailing in Phases 3 and 4 on a prescriptive rights theory; and (2) whether the District can establish that the 1833–1834 Mexican secularization enactments transformed Mission San Miguel into a pueblo capable of supporting a California pueblo water right.

For the reasons stated below, the Court DENIES the motion for summary judgment. The Court DENIES summary adjudication of Issue 1 (judicial estoppel). The Court GRANTS summary adjudication of the Twentieth Affirmative Defense (Treaty Water Right). The Court DENIES summary adjudication of the Nineteenth Affirmative Defense (Pueblo Water Right), subject to the legal framework as set forth herein, which will govern the Phase 6 trial. The Court GRANTS the parties' requests for judicial notice and rules upon the evidentiary objections as set forth below.

II. Background

Plaintiffs are overlying landowners in the Paso Robles Basin who filed this quiet-title action on November 25, 2013. The Court has conducted the litigation in phases. In Phase 1, the Court held that Plaintiffs established a prima facie quiet-title case through ownership of overlying land, subject to whatever rights Defendants could prove. (Plaintiffs' Memorandum ("Memo"), pp. 7–8.) In Phase 3, a jury found by special verdict dated September 24, 2018 that the District perfected prescriptive groundwater rights during the years 1981 to 1990 only, based

on findings that the District's pumping was open and notorious, hostile and adverse, continuous and uninterrupted, and under claim of right. (Memo, p. 8; District's Opposition ("Opp."), p. 8.) In Phase 4, by order dated June 7, 2019, the Court quantified the District's prescriptive right at 177.03 acre-feet per year, calculated as gross pumping of 184.73 acre-feet per year less 7.7 acre-feet per year of overlying use that the Court treated as non-adverse. (Opp., p. 8.) The Phase 4 order stated that the Court was not determining the parties' overlying groundwater rights. (*Ibid.*)

With its Second Amended Answer (filed on April 12, 2017, and before the Phase 3 trial), the District added the two affirmative defenses now at issue. The Nineteenth Affirmative Defense alleges that the secularization of Mission San Miguel "led to the creation of a pueblo water right" and that the District is the successor to that right. The Twentieth Affirmative Defense alleges a vested Mexican-era water right recognized by the Treaty of Guadalupe Hidalgo, with priority over rights established under California law. (Memo, p. 7; Opp., pp. 7–8.) The City of El Paso de Robles has stated its intention to withdraw its parallel affirmative defenses; the District is accordingly the sole remaining Phase 6 claimant.

In opposition, the District submits the declaration of Douglas R. Littlefield, Ph.D., an historian, together with a compendium of exhibits, including: the Decree of the Mexican Congress of August 17, 1833; Governor Figueroa's Provisional Regulations of August 9, 1834; an 1854 federal survey plat; the September 2, 1859 United States patent to the Mission San Miguel lands; newspaper articles from 1869 to 1871 concerning a San Miguel voting precinct and school district; Sanborn maps from 1888 to 1931; and materials concerning the transfer of the local water system to public control in 1924. (Opp., pp. 8–10, 17–18.)

Plaintiffs rely principally on the District's verified discovery responses and document production, including the Report on the Subject of Land Titles in California reproducing two 1845 decrees of the Mexican Departmental Assembly, and, with their reply, the California State Lands Commission's 1982 publication, *Grants of Land in California Made by Spanish or Mexican Authorities*. (Memo, p. 22; Plaintiffs' Reply ("Reply"), pp. 6–7, 9–10.)

III. Requests for Judicial Notice

A. District’s Request for Judicial Notice

The District requests judicial notice of its Compendium Exhibits C–Q. The Treaty of Guadalupe Hidalgo is subject to mandatory judicial notice as law of the United States. (Evid. Code, § 451, subd. (a).) The 1833 Decree and 1834 Regulations are the law of a foreign nation (*id.*, § 452, subd. (f)), the tenor of which the Court may determine with the assistance of the Rockwell translation and the advice of persons learned in the subject (*id.*, § 454). The survey plats, topographic maps, and 1859 patent are official acts and records of the United States (*id.*, § 452, subd. (c)). The facts and dates of publication of the five newspaper articles are noticeable under section 452, subdivisions (g) and (h). Judicial notice extends to the existence, content, and legal effect of these materials, but not to the truth of hearsay statements contained in newspaper articles or secondary histories.

Accordingly, the District’s request for judicial notice of its Compendium Exhibits C–Q is GRANTED.

B. Plaintiffs’ Request for Judicial Notice

Plaintiffs seek judicial notice of evidence submitted with their reply, the State Lands Commission, Grants of Land in California (1982). As this is an official record of a state agency (Evid. Code, § 452, subd. (c)), the Court GRANTS the request for judicial notice as to its existence and content. (Reply, pp. 6–7.) Because the document was first submitted with the reply, the Court has considered it only as described below in Section VI.C, and the District will have an opportunity to address it at the hearing.

IV. Evidentiary Objections

The Court rules on each objection as required by *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532 (“trial courts have a duty to rule on evidentiary objections presented in proper form”).

A. The District’s Objections Nos. 1 through 8

As to Objection No. 1, the documents at issue were produced by the District in discovery and are submitted in identical form in the District's own compendium; their authenticity is established. (Evid. Code, § 1414.) The decrees are judicially noticeable foreign law offered for their existence and legal effect rather than for the truth of the matters asserted, and the Zimmer declaration authenticates and quotes the documents without offering expert opinion. Objections Nos. 2 through 8 are directed at the characterizations in Plaintiffs' separate statement rather than at evidence and therefore do not state grounds for exclusion. (Cal. Rules of Court, rule 3.1354.) To the extent the District objects to the Plaintiffs' use of the District's verified discovery responses, those responses are admissions of a party and are admissible against it. (Evid. Code, § 1220.)

Accordingly, the Court **OVERRULES** the District's objections Nos. 1 through 8.

B. Plaintiffs' Objections to the Littlefield Declaration

Plaintiffs interpose four objections to the Littlefield Declaration, which the Court rules upon as follows.

Objection No. 1 (¶ 5) is **SUSTAINED IN PART**. The tenor and legal effect of the 1833 and 1834 enactments are questions of law for the Court (Evid. Code, § 310, subd. (b)), and the declaration does not create a triable issue of fact on those questions. Nevertheless, the Court will consider the declaration as advice concerning foreign law under Evidence Code section 454, subdivision (b), and the objection is otherwise overruled as to the declaration's historical narrative.

Objection No. 2 (¶ 6) is **OVERRULED**; the asserted vagueness of the phrase "over a period of time" and the post-1848 date of the supporting exhibits go to the weight and sufficiency of the evidence, not its admissibility.

Objection No. 3 (¶¶ 7–8) is **OVERRULED**; the material is relevant to the continuity of the San Miguel community.

Objection No. 4 (¶ 9) is **SUSTAINED IN PART**. The paragraph is admissible as an historian's description of the community's development, but it is not admissible as an opinion that San Miguel attained pueblo status as a matter of law, which is the ultimate legal question

reserved to the Court. The Court additionally notes that Dr. Littlefield’s expert report expressly disclaims any opinion “on whether San Miguel was legally a pueblo,” and the declaration will not be given effect beyond the scope of the report on which it rests. (Reply, p. 6.)

V. Legal Standard

Summary judgment or summary adjudication is proper only where the papers show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Summary adjudication may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (*Id.*, subd. (f)(1).) Because Plaintiffs move against affirmative defenses, they bear the initial burden of showing that the District cannot establish at least one element of each defense; only upon such a showing does the burden shift to the District to demonstrate a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, 850–851.) The Court strictly construes the moving papers, liberally construes the opposition, draws all reasonable inferences in favor of the opposing party, and does not weigh the evidence.

The determination of foreign law is a question of law for the Court. (Evid. Code, § 310, subd. (b).) Conflicting expert opinion creates a triable issue only where the conflict concerns a question of fact; expert opinion directed to a question of law does not create a triable issue. (*Id.* at § 801; see also *Summers v. A.L. Gilbert Co.* (1999) 69 Cal.App.4th 1155, 1178 “[t]here are limits to expert testimony, not the least of which is the prohibition against admission of an expert’s opinion on a question of law”].)

VI. Discussion

A. Issue 1: Judicial Estoppel

Judicial estoppel applies where (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial proceedings; (3) the party was successful in asserting the first position; (4) the two positions are totally inconsistent; and (5) the first

position was not taken as a result of ignorance, fraud, or mistake. (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183 (*Jackson*); see Memo, p. 9; Reply, p. 2.) But even where the elements are satisfied, application of the doctrine is discretionary. (*MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co., Inc.* (2005) 36 Cal.4th 412, 422 [the doctrine’s “dual goals are to maintain the integrity of the judicial system and to protect parties from opponents’ unfair strategies ... [c]onsistent with these purposes, numerous decisions have made clear that judicial estoppel is an *equitable doctrine*, and its application, even where all necessary elements are present, is discretionary”].)

Removed from the current procedural posture of this action, Plaintiffs’ argument appears logical. As to any water covered by both claimed rights, the District’s pumping could not simultaneously have been hostile and adverse to Plaintiffs’ title (i.e., the premise of the Phase 3 verdict) and a lawful exercise of a paramount antecedent right. (Memo, pp. 11–14; Reply, pp. 2–3; see *Mailhes v. Investors Syndicate* (1934) 220 Cal. 735, 738 [“[a]ll actions which proceed upon the theory that the title to property is in plaintiff are inconsistent with those which proceed upon the theory that title is in defendant”].)

Nevertheless, the current procedural posture of this action does not support application of the doctrine here. The District pleaded the pueblo and treaty defenses in its 2017 Second Amended Answer, before the Phase 3 trial, alongside its prescription defense. (Opp., pp. 7–8.) California law permits a party to plead inconsistent defenses in a single answer. (Code Civ. Proc., § 431.30, subd. (b); Opp., p. 13.) The order of trial was fixed by the Court’s bifurcation of the action into phases, not by any unilateral election of the District, and the District has litigated each defense in the phase assigned to it. (Opp., pp. 11–13.) The authority on which Plaintiffs principally rely recognizes that judicial estoppel “obviously contemplates something other than the permissible practice ... of simultaneously advancing in the same action inconsistent claims or defenses which can then, under appropriate judicial control, be evaluated as such by the same tribunal, thus allowing an internally consistent final decision to be reached.” (*Jackson, supra*, 60 Cal.App.4th at p. 181, quoting *Allen v. Zurich Ins. Co.* (4th Cir. 1982) 667 F.2d 1162, 1167; see Opp., pp. 11–12.) That description applies to this case.

In addition, the success element is not established as a matter of law. The jury and the Court adopted the District's position that its 1981–1990 pumping was adverse; no phase of this litigation addressed, adopted, or rejected any position concerning pueblo or treaty title. (Opp., pp. 5, 8.) The Phase 4 order reserved determination of the parties' overlying rights and is silent as to antecedent rights. (Compare Opp., p. 13 [order “expressly declined to determine” antecedent rights] with Reply, p. 4 [order does not use the words “antecedent,” “pueblo,” or “treaty”].)

On this record, the Court cannot conclude as a matter of law that a tribunal accepted a position of the District that is wholly inconsistent with the defenses now at issue, and the equitable considerations that inform the discretionary application of the doctrine do not favor terminating the defenses before the phase set aside to try them. (See Opp., pp. 14–15; Reply, p. 4.)

In this case, the concerns underlying Plaintiffs' motion are properly addressed at the conclusion of Phase 6, when the Court frames a single, internally consistent final judgment. If the District establishes a paramount antecedent right as to particular waters, the Court may at that time address the relationship between any such right and the previously adjudicated prescriptive right, which rests on findings of adversity. (Reply, pp. 3–4.) Nothing in this ruling determines that both adjudications can be given full effect as to the same water.

Accordingly, the Court DENIES summary adjudication of Issue 1, judicial estoppel.

B. The Twentieth Affirmative Defense (Treaty Water Right)

The Treaty of Guadalupe Hidalgo protected property rights existing under Mexican law at the change of sovereignty on February 2, 1848; it did not create new water rights. (Memo, pp. 19–20; Reply, pp. 5, 7–8.) The authorities cited by both parties treat the subsequent federal confirmation and patent proceedings as confirming pre-existing rights rather than originating new ones. (*City of Los Angeles v. Los Angeles Farming & Milling Co.* (1908) 152 Cal. 645, 649–650; *Los Angeles Farming & Milling Co. v. City of Los Angeles* (1910) 217 U.S. 217, 226–227 [rights “merely confirmed and not originated” by federal proceedings]; see Memo, pp. 19–20.)

The District's opposition does not identify any water right arising from the Treaty independent of its pueblo theory, and the District's own request for judicial notice describes the Treaty as protecting rights recognized under antecedent Spanish and Mexican law. (Reply, pp. 7–8 [noting the Opposition's silence on the Twentieth defense]; Opp., pp. 9, 15–20 [defending only the pueblo theory].) The Twentieth Affirmative Defense is therefore wholly derivative of the Nineteenth: if the District proves an antecedent pueblo right at Phase 6, the Treaty is relevant to that right's survival; if it does not, the Treaty confers no independent right. Because the defense has no independent content, Plaintiffs have carried their burden of showing that the District cannot establish a treaty-based water right as a distinct affirmative defense, and the District has not raised a triable issue in response.

Accordingly, the Court GRANTS summary adjudication of the Twentieth Affirmative Defense. This ruling does not preclude the District from relying on the Treaty at Phase 6 as the instrument by which any pueblo right proven to have existed under Mexican law was preserved following the change of sovereignty.

C. The Nineteenth Affirmative Defense (Pueblo Water Right)

California's pueblo-right decisions, from *Feliz v. City of Los Angeles* (1881) 58 Cal. 73 (*Feliz*) and *Vernon Irrigation Co. v. City of Los Angeles* (1895) 106 Cal. 237 through *City of San Diego v. Cuyamaca Water Co.* (1930) 209 Cal. 105 and *City of Los Angeles v. City of San Fernando* (1975) 14 Cal.3d 199, uniformly proceed from succession to an actual Spanish or Mexican pueblo, established either on an evidentiary record or by prior adjudication. (Memo, pp. 14–19; Opp., pp. 16–19.) No California decision holds that secularization alone converted a mission into a pueblo. (Memo, pp. 17–19.) The doctrine is not limited to any particular municipality, but it requires proof of the historical predicate. (Opp., p. 19.)

The parties' submissions frame different questions. Plaintiffs' Issue 2 asks whether the District can establish that the secularization decrees “transformed” Mission San Miguel into a pueblo. (Memo, pp. 5, 14.) The District responds that it does not contend the decrees effected a transformation by operation of law; its position is that the decrees directed a conversion and that the conversion occurred as a matter of historical fact. (Opp., pp. 15–16.) Because summary

adjudication must completely dispose of the affirmative defense (Code Civ. Proc., § 437c, subd. (f)(1)), and because the Nineteenth Affirmative Defense as pleaded (that secularization “led to” the creation of a pueblo water right) is broad enough to encompass a directed conversion accomplished in fact, adjudication of the narrower “transformation” proposition alone would not dispose of the defense. In reply, Plaintiffs point to *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257, in arguing that the pleadings delimit the issues and the District may not recast its defense in opposition. (Reply, p. 8.) The Court need not resolve that contention to decide the motion.

Plaintiffs’ response to the District’s broader theory, including the elements derived from *Feliz*, the contention that the Treaty of Guadalupe Hidalgo operates as a temporal cutoff for the creation of Mexican-law pueblo status (*United States v. Workman* (1863) 68 U.S. 745 (*Workman*)), and the State Lands Commission compilation was presented for the first time in the reply papers, together with a reply request for judicial notice. (Reply, pp. 4–7, 9–10.) Due process considerations preclude granting summary adjudication on the basis of legal theories and evidence first presented in reply, without affording the opposing party an opportunity to respond. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316.) As such, the Court must deny the motion as to the Nineteenth Affirmative Defense.

However, to provide guidance for the Phase 6 trial, the Court sets forth the following framework, which the parties should be prepared to address at pretrial conference or by motion in limine:

First, the meaning and legal effect of the 1833 Decree, the 1834 Regulations, and the 1845 decrees of the Departmental Assembly are questions of law for the Court. (Evid. Code, § 310, subd. (b); Reply, pp. 8–9.) Both parties have requested judicial notice of these enactments as foreign law, and their meaning will not be treated as a question of fact or as a matter for resolution by competing expert opinion.

Second, a pueblo water right requires proof that a pueblo was duly formed and recognized under Spanish or Mexican law before sovereignty changed on February 2, 1848. (Reply, pp. 4:22–6:18.) While the Treaty protected rights existing at that time, it did not create rights thereafter. Evidence of post-1848 community development, such as the 1869–1871

voting precinct and school district records, the Sanborn maps, and the twentieth-century water-service history, may corroborate the continuity of the San Miguel community. (Opp., pp. 9–10, 17–18.) But such evidence, standing alone, cannot establish the required pre-Treaty pueblo status.

Third, the District should be prepared at trial to identify evidence that pueblo formation was completed or effected under Mexican authority before the Treaty. Without deciding the question, the Court observes that the present record contains substantial contrary indications: the 1834 regulations were provisional and were later suspended (*Workman*, supra, 68 U.S. at pp. 763–765; Reply, p. 9); and the May and October 1845 decrees of the Departmental Assembly, the only Mexican governmental acts in the record specifically addressing Mission San Miguel, classified it among missions abandoned by their neophytes and directed its sale, while separately identifying four other missions to be considered pueblos. (Memo, p. 22; Reply, pp. 9–10.) If the District concedes at the hearing on this ruling, or at the outset of Phase 6, that it has no evidence of pre-Treaty formation or recognition, the Court will consider whether any triable issue remains for Phase 6.

Accordingly, the Court DENIES summary adjudication of the Nineteenth Affirmative Defense, without prejudice to the Court’s determination of the foreign-law questions identified above, before or at the Phase 6 trial.

VII. Conclusion

For the reasons stated above, the Court rules as follows.

1. The Court DENIES Plaintiffs’ motion for summary judgment.
2. The Court DENIES summary adjudication of Issue 1 (judicial estoppel).
3. The Court GRANTS summary adjudication of the Twentieth Affirmative Defense (Treaty Water Right).
4. The Court DENIES summary adjudication of the Nineteenth Affirmative Defense (Pueblo Water Right), subject to the legal framework as set forth herein, which will govern the Phase 6 trial.

5. The Court GRANTS the parties' requests for judicial notice and rules upon the evidentiary objections as stated herein.
6. The Phase 6 trial remains set for August 17, 2026 at 9:00 a.m. in Department 19. The parties shall be prepared to address, at the pretrial conference or by motion in limine, the Court's determination of the foreign-law question identified above.

Counsel for Plaintiffs shall prepare the order.

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Calendar Line 7

Case Name:

Case No.:

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Calendar Line 8

Case Name: *Cruz v. Quantumscape et al.*
Case No.: 23CV427117

This is a putative class and representative action arising from alleged wage and hour violations. In the operative second amended complaint against defendants QuantumScape Corporation and QuantumScape Battery, Inc. (“Defendants”), plaintiffs Pete Cruz and Jose Hernandez allege failures to pay minimum, overtime, and vacation wages; provide meal and rest periods; pay sick leave at the regular rate of pay; reimburse necessary business expenses; provide accurate wage statements; keep required payroll records; and timely pay wages and final wages, as well as related PAGA penalties.

Plaintiffs now move for preliminary approval of the settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for preliminary approval, VACATES the Case Management Conference currently set in this matter for July 15, 2026 at 2:30 p.m. in Department 19, and sets a final approval hearing for January 27, 2027 at 1:30 p.m. in Department 5.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56,